

TRICKY CONTRACT #3: NET-90 & PAY-WHEN-PAID

CONSULTING & SUBCONTRACTOR AGREEMENT

ARTICLE I. COMPENSATION & PAYMENT TERMS

Client shall remit payment to Subcontractor within ninety (90) days following final written approval and acceptance of all deliverables.

ARTICLE II. PAY-WHEN-PAID CONDITIONAL CLAUSE

Subcontractor acknowledges and agrees that Client's obligation to pay Subcontractor is expressly contingent upon Client receiving payment for the underlying project from Client's end-customer. If Client's end-customer defaults, delays, or fails to pay Client for any reason, Subcontractor waives all rights to receive payment from Client for work performed.

ARTICLE III. UNILATERAL RIGHT TO WITHHOLD PAYMENT

Client reserves the absolute right to withhold payment in whole or in part if Client determines, in its sole discretion, that Subcontractor's performance or work quality does not meet Client's internal standards.

ARTICLE IV. TERMINATION FOR CONVENIENCE WITHOUT COMPENSATION

Client may terminate this Agreement at any time for any reason or no reason with immediate effect. Upon termination, Subcontractor shall immediately surrender all work product, source code, and design files. Client shall have no obligation to compensate Subcontractor for any work performed prior to the date of termination.